

The expression "bishopric" includes an archbishopric.

The expression "income" in relation to a bishopric does not include the annual value of any premises occupied by virtue of the office.

8. This Measure may be cited as the Episcopal Short title. Pensions Measure, 1926.

## THE SCHEDULE.

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32 & 33 Vict., c. 111.—The Bishops' Resignation Act, 1869, section 2 (from "with the exceptions following" to "archbishop or bishop" at the end of the paragraph numbered (3) in that section).

38 & 39 Vict., c. 34.—The Bishopric of St. Albans Act, 1875, section 14.

## No. 8.

A MEASURE passed by the National Assembly  
of the Church of England

To consolidate and amend the law relating to the due performance of the Ecclesiastical Duties of Benefices, and to make provision for the Stipends of Curates appointed under the Measure and in certain other cases.

[15th December 1926.]

### · · · PART I.

#### ECCLESIASTICAL DUTIES OF BENEFICES.

1. In any case where the ecclesiastical duties of a benefice are inadequately performed either by reason of the negligence of the incumbent or without negligence on his part, provision may be made under this Part of this Measure for the due performance of such duties.

Provisions for securing due performance of ecclesiastical duties of benefices.

2. For the purposes of this Measure—

(a) the expression "ecclesiastical duties" shall include (but subject to the express provisions of subsection (4) of section three of this

Ecclesiastical duties.

Measure) the observance of the several promises made by every clerk in Holy Orders upon his ordination as a deacon and as a priest, and shall also include, when used with reference to a benefice,

(i) all duties which the incumbent is bound by law to perform,

(ii) the duties imposed upon the incumbent by the Rules for the Representation of the Laity, and

(iii) an obligation binding the incumbent to manifest in his acts, conduct and course of life, due respect for his sacred office, and a due solicitude for the moral and spiritual welfare of his parishioners;

- (b) the expression "negligence" when used with reference to an incumbent of a benefice includes wilful default in the performance of the ecclesiastical duties of his benefice; but no incumbent shall be deemed to have been negligent in the observance or performance of any of his ordination promises or the duties imposed upon him by the Rules for the Representation of the Laity unless such observance or performance has been required of him in writing by the bishop, who shall give him opportunity of replying, before issuing any commission under the provisions of section three of this Measure.

Power of  
the bishop  
to appoint a  
commission.

**3.**—(1) The bishop of a diocese shall have power, in any case where he has reason to think that the ecclesiastical duties of any benefice in his diocese are inadequately performed, to appoint a commission under this Measure to inquire into the facts of the case.

(2) Every commission under this Measure shall be constituted in manner laid down by the First Schedule hereto.

(3) No commission shall be appointed under this Measure unless the bishop appointing the same has given to the incumbent affected one month's notice of his intention to make the appointment.

(4) No commission shall be appointed under this Measure to inquire into, and no commission under this

Measure shall inquire into, any question of doctrine or ritual.

4.—(1) Every commission under this Measure shall inquire into the facts of the case in respect of which the inquiry is ordered, and shall report thereon to the bishop of the diocese in which the benefice concerned is situate. Report of  
commission  
to bishop.

(2) Every report of a commission under this Measure shall state whether the ecclesiastical duties of the benefice to which the inquiry relates are inadequately performed or not; and, if the question arises, whether the inadequate performance of the said duties is or is not due to the negligence of the incumbent of the said benefice.

(3) A copy of every report shall be supplied simultaneously to the bishop and to the incumbent concerned.

(4) If the commissioners are divided in opinion upon any question upon which the commission is hereby required to report to the bishop, the opinion of the majority shall prevail, but in the case of an equality of votes upon any question, such question shall be deemed to be determined in favour of the incumbent concerned.

5.—(1) The bishop of the diocese in which any benefice to which a report of a commission under this Measure relates is situate shall have the following powers in respect of the benefice (that is to say):— Powers of  
the bishop.

(i) if the report states that the ecclesiastical duties of the benefice are inadequately performed but that this is not due to the negligence of the incumbent,

(a) power by writing under his hand stating the grounds of his requisition to require the incumbent, although actually resident or engaged in performing the duties of the benefice, to nominate to him a curate or curates with a stipend or stipends at the rates laid down by this Measure, to be licensed by him to perform or to assist in performing those duties; and

(b) power also, if the incumbent neglects or omits to make such nomination for the space of three months after such requisition to appoint and license a curate or curates with a stipend or stipends at the rates laid

down by this Measure, to perform or to assist in performing those duties;

- (ii) if the report states that the ecclesiastical duties of the benefice are inadequately performed and that this is due to the negligence of the incumbent,

- (a) power to appoint and license a curate or curates with a stipend or stipends at the rates laid down by this Measure, to perform or to assist in performing the said duties; and

- (b) power also to inhibit the incumbent from performing all or any of those duties.

(2) The powers of requiring the appointment of and of appointing a curate or curates conferred on the bishop by this section—

- (i) may be exercised from time to time in case of any vacation by a curate of his curacy;
- (ii) shall not be exercised in such manner that more than three curates shall be licensed to perform or assist in performing the duties of any benefice.

(3) The bishop shall cause a copy of every requisition made and inhibition issued by him under this section and of the report of the commission on which the same are founded to be forthwith filed in the diocesan registry.

#### Appeals

6.—(1) The incumbent of a benefice in respect of which the bishop has exercised any of the powers conferred on him by this Measure may appeal—

- (i) if the report of the commission under this Measure affecting him states that the inadequate performance of the ecclesiastical duties of his benefice was not due to his negligence, to the archbishop of the province in which his benefice is situate who shall finally determine the matter by either approving or revoking the requisition to nominate a curate or curates or confirming or annulling the appointment of a curate or curates as the case may require and as may seem just and proper to the said archbishop; or
- (ii) if the said report states that the inadequate performance of the said duties was due to his negligence, to the court constituted under this Measure.

(2) On any appeal to the court constituted under this Measure, the judge shall determine whether the incumbent appealing has or has not been negligent, and whether the ecclesiastical duties of his benefice are inadequately performed or not and the archbishop shall thereupon:—

- (i) if the judge finds that the incumbent has not been negligent and that the ecclesiastical duties of his benefice are adequately performed, annul the appointment of a curate or curates, and rescind the inhibition, if any;
- (ii) if the judge finds that the incumbent has not been negligent but that the ecclesiastical duties of his benefice are inadequately performed, rescind the inhibition, if any, and decide whether by reason solely of such inadequate performance of ecclesiastical duties a curate or curates should be or have been appointed;
- (iii) if the judge finds that the incumbent has been negligent, decide whether by reason thereof a curate or curates should be or have been appointed, and also, whether the incumbent should be or have been inhibited from performing all or any of the duties of his benefice.

(3) On any such appeal the Archbishop shall give judgment, and that judgment shall be final, and may, where necessary, include the rescission of an inhibition or the annulment of the appointment of a curate or curates.

(4) Every appeal under this Measure shall be brought within one month after the requisition to appoint a curate, appointment of a curate by a bishop without previous requisition, or inhibition, appealed against.

7.—(1) Subject to the provisions of this section, the court constituted under this Measure (in this section referred to as “the court”) shall consist of the archbishop of the province in which the benefice to which the appeal relates is situate and of a judge of the Supreme Court, who shall be nominated by the Lord Chancellor from time to time for the purposes of this Measure. Constitution of court.

(2) The court shall be a court of record and shall be held in public.

(3) The legal rules of evidence shall be binding on the court.

(4) The bishop within whose diocese the benefice to which an appeal to the court relates is situate shall be a party to the proceedings upon such appeal.

(5) Notwithstanding any other of the provisions of this Measure any appeal under this Measure, from any exercise of any power hereby conferred upon either of them the Archbishops of Canterbury and York as a diocesan bishop shall be as the case may require either to the other of them or to a court consisting of a judge of the Supreme Court and the other of them.

Oaths and  
evidence.

8. A commission under this Measure and the court constituted hereunder shall respectively have the same powers of administering oaths and of requiring the attendance of witnesses and the production by them of documents and as to the payment and recovery of costs and expenses as are exercisable by the High Court of Justice, and any order for the payment or recovery of costs or expenses shall be enforceable as if it were an order of the Supreme Court :

Provided that any proceedings against any person guilty of contempt of the Commission or of the Court shall be taken before the High Court of Justice in accordance with Rules of the Supreme Court, and in such proceedings the High Court shall exercise, in accordance with such Rules, the same jurisdiction as would have been exercisable if the contempt had been a contempt of the Supreme Court.

Power to  
make rules.

9.—(1) A rule committee constituted in manner laid down by the Second Schedule hereto may make rules for regulating the procedure on and incident to the hearing and determination of an appeal to the court constituted under this Part of this Measure, the fees payable in respect thereof, and the appointment and duties of officers of the said court, and otherwise for carrying this Part of this Measure into effect.

(2) All fees paid in respect of proceedings before the court constituted under this Measure shall be paid over to the Common Fund of the Ecclesiastical Commissioners, who shall, out of such Common Fund, defray all the expenses of and incidental to the sittings of the said court and the remuneration of its officers, and all expenses which are necessarily incurred in such proceedings :

Provided that no portion of any fund destined for the relief of necessitous incumbents shall be applied to the payment of the aforesaid expenses.

(3) Every rule purporting to be made in pursuance of this section shall forthwith be laid before both Houses of Parliament, and if an address is presented to His Majesty the King by either House within the next twenty days thereafter on which that House has sat praying that any such rule may be annulled, His Majesty in Council may annul the same, without prejudice to the validity of anything done in the meantime in pursuance thereof: but subject as aforesaid, every such rule shall, while unrevoked, be of the same validity as if contained in this Measure.

10.—(1) In any case in which an incumbent is inhibited under this Measure from performing all or any of the ecclesiastical duties of his benefice—

Conse-  
quences of  
inhibition.

- (i) he shall not interfere with or control any curate in the performance of any of the said duties;
- (ii) any right of patronage vested in him by virtue of his benefice shall while he is so inhibited vest in the patron of his benefice, or, if he be himself the patron, in the archbishop of the province;
- (iii) he shall not reside in or occupy any parsonage house belonging to the benefice;

Provided that—

- (a) he shall not be liable to any penalty or forfeiture for non-residence, and
- (b) the bishop issuing the inhibition may, for special reasons, permit him to reside in, or occupy, such parsonage house or some part thereof;
- (iv) subject to any direction to the contrary given by the bishop issuing the inhibition, he shall not receive any part of the income of his benefice while he remains resident within the parish or other area in which he had as incumbent the cure of souls; and
- (v) the bishop issuing the inhibition shall sequester the profits of the benefice, and such profits shall be applied under such sequestration for the purposes for which the same shall for the time being be applicable under the provisions of this Measure or otherwise.

(2) In this section the expression “bishop issuing the inhibition” shall include an Archbishop exercising the powers conferred on him by this Measure.

(3) Subject to the provisions of this Measure, any part of the income of any benefice which the incumbent thereof is under this section disqualified from receiving by reason of his so remaining resident as aforesaid shall be paid to and for the purposes of Queen Anne’s Bounty.

Power to determine appointments of curates and inhibitions.

**11.** The bishop of a diocese shall have power to rescind any appointment of a curate or inhibition under this Measure affecting any benefice within his diocese or the incumbent of such benefice:

Provided that the bishop, in exercising the powers conferred by this section—

(i) shall be satisfied that the incumbent of the benefice concerned is able and willing adequately to discharge the ecclesiastical duties of the said benefice and that the exercise of the said powers will not be prejudicial to the spiritual interests of the parishioners of the said benefice; and

(ii) shall not determine the appointment of any curate hereunder except upon six months’ notice.

Avoidance of benefice where inhibition is not rescinded.

**12.** In any case where an inhibition under this Measure continues undetermined for a period of five years from the date of the issuing thereof, the benefice thereby affected shall at the expiration of that period become void as if the inhibited incumbent were then dead.

Occupation of parsonage house.

**13.—(1)** A bishop who has appointed a curate under this Measure to perform or to assist in performing the ecclesiastical duties of any benefice, and has also inhibited the incumbent of the benefice from performing those duties or any of them, may require the curate to reside in the parsonage house belonging to the benefice, and if he shall require him so to do may assign to him such parsonage house, together with the offices, gardens and appurtenances thereto belonging or any part or parts thereof, without payment of any rent, and also any portion of glebe land adjacent to the said parsonage house not exceeding four acres at such rent as shall be fixed by the rural dean of the rural deanery in which the benefice is situated and one neighbouring incumbent and approved of by the bishop.



(2) A curate residing in the parsonage house of a benefice under the provisions of this section shall be liable for the repair thereof and for assessments in respect thereof under the Ecclesiastical Dilapidations Measure, 1923, or any Measure amending the same to such extent as the bishop may decide to be reasonable.

(3) The bishop shall have power in any case in which possession of any premises assigned to a curate under the provisions of this section is not given up to him and until such possession shall be given up to direct that the profits of the benefice arising from the sequestration thereof under this Measure be applied subject to the provisions hereof, as if the same arose under a sequestration for non-residence.

(4) A right of residence and any other right vested in a curate under the provisions of this section shall determine upon the determination of his curacy.

## PART II.

### STIPENDS OF CURATES.

**14.**—(1) Subject to the provisions of this section Stipends of curates.  
every curate who is—

- (i) appointed under the provisions of this Measure,
- (ii) the curate of a non-resident incumbent, or
- (iii) appointed under the provisions of any statute or measure for the time being in force empowering the bishop to appoint a curate

(a) during any period of sequestration under a judgment recovered against or the bankruptcy of an incumbent, or

(b) during the vacancy of a benefice,

shall receive such stipend as may be assigned to him by the bishop of the diocese in which such curate serves :

Provided that the stipend of a curate to whom this section applies shall not exceed a sum equal to three-quarters of the net annual value of the benefice to perform the duties of which the curate is appointed except where the curate is—

- (i) appointed under the provisions of this Measure to perform the duties of a benefice which the incumbent of the benefice is inhibited hereunder from performing, or
- (ii) appointed during the vacancy of a benefice ;

in either of which cases the stipend of the curate may be a sum not exceeding the net annual value of the benefice.

(2) In any case where more than one curate to whom this section applies is appointed to perform the duties of a single benefice, the stipends of the curates so appointed shall for the purposes of this section be treated as if the aggregate thereof were the stipend of a single curate.

(3) Notwithstanding any other of the provisions of this section, the bishop may direct that the whole of the net income of a benefice shall be paid by way of stipend to a curate to whom this section applies for any period during which the incumbent of the benefice being inhibited under this Measure remains resident within the parish or other area in which he had as incumbent the cure of souls.

(4) Every stipend assigned to a curate under this Measure upon the occasion of his appointment shall be specified in the licence granted to him by the bishop.

Net annual  
value of  
benefices.

**15.**—(1) For the purposes of this Measure the net annual value of a benefice shall be ascertained by deducting from the gross amount of the annual value thereof all taxes (other than income or property tax) rates, dues and permanent charges and outgoings, and subject to the provisions of this section all assessments under the Ecclesiastical Dilapidations Measure, 1923, but not any curate's stipend or any such taxes or rates in respect of the parsonage house of the benefice or of the glebe land belonging thereto as are usually paid by tenants or occupiers or any moneys expended in the repair or improvement of or such parts of the said assessments as are attributable to the parsonage house and buildings and premises belonging thereto.

(2) The bishop shall have power in any case where the net annual value of any benefice within his diocese requires to be determined for any of the purposes of this Measure to make, or cause to be made, such inquiries and call for such evidence as he may think fit, and otherwise to proceed upon the best information which he may be able to procure, and the determination of the bishop of such net annual value founded on such evidence or other information shall be final and conclusive for all the purposes of this Measure.

## PART III.

## GENERAL.

16. Any requisition or other notice requiring to be sent or given under this Measure shall be deemed to have been duly sent or given if sent through the post in a prepaid registered letter addressed in the case of an incumbent to the parish or place whereof he is incumbent.

17. This Measure may be cited as the Benefices (Ecclesiastical Duties) Measure, 1926.

18. This Measure shall extend to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man.

19. The enactments set out in the Third Schedule to this Measure are hereby repealed to the extent mentioned in the third column of that Schedule.

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SCHEDULES.

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THE FIRST SCHEDULE.

## PART I.

## CONSTITUTION OF COMMISSIONS.

1. One commissioner shall be either the archdeacon of the archdeaconry or the rural dean of the rural deanery within which the benefice to which the inquiry relates is situate.

2. One other commissioner shall be the dean or a canon, prebendary or honorary canon of the cathedral church of the diocese wherein the said benefice is situate, elected in manner provided by Part II. of this Schedule.

3. One other commissioner shall be the incumbent of a benefice situate within the same archdeaconry as the benefice to which the inquiry relates elected in manner provided by Part II. of this Schedule.

4. Three other commissioners shall be laymen, being persons qualified for membership of the Diocesan Conference of the

diocese, nominated in manner provided by Part II. of this Schedule and being—

- (i) as to one of such commissioners a magistrate in the commission of the peace for the county in which the said benefice is situate; and
- (ii) as to each of the other two of such commissioners either such magistrate as aforesaid or a barrister-at-law or solicitor of not less than ten years' standing.

5. One other commissioner, being either an incumbent of a benefice in the same diocese as the benefice to which the inquiry relates or a magistrate in the commission of the peace for the county in which the said benefice is situate, and being a person qualified for membership of the Diocesan Conference of the diocese, may be nominated by the incumbent of the said benefice :

Provided that, if the said incumbent shall not within fourteen days after the notice of the appointment of the commission provided for by this Measure nominate such additional commissioner in writing to the bishop, the other commissioners shall proceed alone.

6. No person holding the office of diocesan registrar or secretary to a diocesan bishop shall be qualified to act as a commissioner under this Measure.

7. In this Schedule the expression "county" means any area not being a city or borough which has a separate commission of the peace, and every benefice shall be deemed to be within a county as hereby defined notwithstanding that it is locally situate in a city or borough.

## PART II.

### ELECTION AND APPOINTMENT OF COMMISSIONERS.

1.—(i) The holders in every cathedral of a cathedral office as hereby defined shall forthwith after the passing of this Measure and at the expiration of every succeeding period of three years, elect one of their body to be a commissioner for the ensuing three years for the purposes of any commission under this Measure to be appointed by the bishop of the diocese to which such cathedral church belongs.

(ii) For the purposes of this provision the expression "cathedral office" shall include only deaneries, canonries, honorary canonries, and prebends.

2. In every archdeaconry the incumbents holding benefices therein shall forthwith after the passing of this Measure and at the expiration of every succeeding period of three years,

elect one of their body to be a commissioner for the ensuing three years for the purposes of any commission under this Measure relating to any benefice within such archdeaconry.

3. Elections of commissioners under the foregoing provisions of this part of the Schedule shall take place at meetings of the electors convened by the dean or archdeacon as the case may be, or in any case where circumstances so require in such manner as the bishop of the diocese concerned may direct.

4. Elections of commissioners under the said provisions shall forthwith be certified to the bishop in writing under the seal of the dean and chapter or the hand of the archdeacon as the case may be, or in any case where circumstances so require under the hand of such person as the bishop may appoint, and any such certificate shall be conclusive evidence of the due election of the person therein mentioned.

5. If any casual vacancy shall occur among the commissioners elected under the said provisions, such vacancy shall be filled in the same manner as if it had occurred at the end of the then current triennial period, and the person elected to fill such casual vacancy shall continue in office until the end of the said triennial period.

6. The three commissioners who, under the provisions of this Schedule, are required to be laymen shall be nominated on the requisition of the bishop proposing to appoint the commission by the person who has presided as chairman at the last preceding quarter sessions for the county or division of the county in which the benefice to which the commission relates is situate, or, failing him, by the lord-lieutenant of the said county.

## SECOND SCHEDULE.

1. The Rule Committee shall consist of—

The Lord Chancellor;

The Lord Chief Justice of England;

The Dean of the Arches;

All Archbishops and Bishops who are members of the Privy Council;

The Judge nominated by the Lord Chancellor under this Measure.

2. Any three members of the Rule Committee, two of them being the Lord Chancellor and one of the aforesaid persons holding judicial office, may exercise all the powers of the Rule Committee.

### THIRD SCHEDULE.

#### ENACTMENTS REPEALED.

| Session and Chapter.    | Short Title.                          | Extent of Repeal.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|-------------------------|---------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 & 2 Vict.<br>c. 106.  | Pluralities Act, 1838                 | <p>In section seventy-five the words "with such salary as is by this Act allowed and directed."</p> <p>Section seventy-seven (so far as unrepealed).</p> <p>In section eighty-three all words before the words "every licence."</p> <p>Section eighty-five.</p> <p>In section eighty-six all words before the words "where the population" and the passage beginning with the words "and" "in all and every of such cases" and ending with the words "consent to a larger stipend."</p> <p>Section eighty-seven.</p> <p>Section eighty-eight.</p> <p>Section eighty-nine.</p> <p>In section ninety-nine the passage beginning with the words "not exceeding" and ending with the words "more than one such curate."</p> <p>In section one hundred the words "not exceeding the respective stipends allowed by this Act."</p> |
| 34 & 35 Vict.<br>c. 45. | Sequestration Act, 1871.              | In section one from "provided always" to the end of the section.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 48 & 49 Vict.<br>c. 54. | Pluralities Acts Amendment Act, 1885. | <p>The second paragraph of section two.</p> <p>Sections three, four, five, six, seven, eight.</p> <p>In section nine the passage beginning with the words "not exceeding" and ending with the words "income of such benefice."</p> <p>Section ten.</p> <p>Section eight.</p> <p>Section nine.</p> <p>In section eleven the words "or" "of an appeal against an inhibition or appointment of a curate."</p> <p>Subsection (3) of section thirteen.</p>                                                                                                                                                                                                                                                                                                                                                                        |
| 61 & 62 Vict.<br>c. 48. | Benefices Act, 1898                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |